

	2025-01476022	Defendant Steven Young’s motion for reclassification of this action as limited jurisdiction is DENIED. (Code Civ. Proc. §403.040, subd. (b)(1).) Defendant has not sufficiently shown that the case is incorrectly classified as an unlimited civil case. “A party seeking to reclassify a case from unlimited to limited faces a ‘high threshold’” (<i>Hiona v. Superior Court</i> (2020) 48 Cal.App.5th 866, 872 [citing <i>Ytuarte v. Superior Court</i> (2005) 129 Cal.App.4th 266, 278].) There must be a finding “that the verdict will ‘necessarily’ fall short of the superior court jurisdictional requirement”. (<i>Id.</i> [citing <i>Walker v. Superior Court</i> (1991) 53 Cal.3d 257, 270.]) The focus of the inquiry is not on the likelihood of the plaintiff obtaining a judgment in excess of the jurisdictional threshold; rather, the question is whether it is possible that the plaintiff could obtain “a jurisdictionally appropriate verdict.”(<i>Id.</i> [citing <i>Maldonado v. Superior Court</i> (1996) 45 Cal.App.4th 397, 402.]) Defendant’s motion argues that reclassification is warranted because it is not “plausible” that Plaintiff’s claims will result in a verdict that exceeds the jurisdictional threshold for civil unlimited. This is not the correct standard to apply in determining whether reclassification is warranted. Plaintiff alleges he is owed \$28,275.20 for costs and expert fees he allegedly incurred in the representation. (See FAC ¶¶19-20). Moreover, Plaintiff alleges he is owed the reasonable value of the legal services he provided to Paquin. Additionally, the FAC includes a cause of action for fraud with a prayer for punitive damages. Defendant’s evidentiary showing in support of the motion does not establish as a legal certainty that Plaintiff’s potential recovery will not exceed the jurisdictional threshold of \$35,000. Defendant shall provide notice.
7	Libertucci vs. Cooper 2023-01370576	Motion for Sanctions No tentative.
8	Murchison Consulting, Inc. vs. Bloomstone 2025-01458900	Default Prove Up <i>Off calendar. See minute order dated 5/21/26.</i>
9	Precision Airparts Support Services, Inc. vs. Clark	<u>Defendants’ Motions to Tax Costs on Appeal</u> <i>Motion to Tax Costs on Appeal (ROA No. 819)</i>

	2018-01021840	Defendants Precision Airparts Support Services, Inc., Tony Ordaz, and Ira Smith’s (collectively, defendants) motion to tax plaintiff Linda Clark’s (plaintiff) “Memorandum of Costs on Appeal No. 1” is GRANTED as to the \$76,594.50 in attorney fees claimed under item 9 only, and otherwise DENIED. To be clear, this first motion to tax costs (ROA No. 819) is directed at plaintiff’s 11/14/25 memorandum of costs on appeal pertaining to the appeal of the judgment, which the parties refer to as the “Memorandum of Costs on Appeal No. 1” (ROA No. 789). Defendant has challenged items 2, 3, and 9 of plaintiff’s Memorandum of Costs on Appeal No. 1. Item 2 and 3, which seek \$3,248 in clerk’s transcript preparation costs and \$2,500 in reporter’s transcript preparation costs, appear facially proper. (See Cal. Rules of Court, rule 8.278(d)(1)(B); see also ROA Nos. 694 [notice of clerk’s transcript fees], 697 [notice to reporter to prepare reporter’s transcript on appeal], 698 [designation of record on appeal].) The verified costs memorandum therefore constitutes prima facie evidence of their reasonableness. (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131.) Defendants have entirely failed to meet their burden to demonstrate otherwise. (See <i>ibid.</i> [burden].) In any event, plaintiff has adequately substantiated these costs. (Duffy Decl. ¶¶ 5-6, Ex. 4.) Item 9 seeks \$76,594.50 in attorney fees pursuant to contract. (See Duffy Decl. ¶ 4, Ex. 3; see also ROA No. 788 [motion for attorney fees on appeal pursuant to contract].) Contractual attorney fees can only be claimed by noticed motion, and not by the filing of a memorandum of costs. (<i>Lee v. Wells Fargo Bank, N.A.</i> (2001) 88 Cal.App.4th 1187, 1198; see Cal. Rules of Court, rule 3.1702; see also <i>Wood v. Santa Monica Escrow Co.</i> (2009) 176 Cal.App.4th 802, 807 [the recovery of costs on appeal and the right to attorney fees are governed by separate rules; “an award of costs on appeal does not determine, or even indicate, who is the prevailing party in the lawsuit for the purpose of awarding fees”]; <i>Butler-Rupp v. Lourdeaux</i> (2007) 154 Cal.App.4th 918, 928; Cal. Rules of Court, rule 8.278(d)(2).) As plaintiff acknowledges in her opposition, the court has already determined that plaintiff’s request for attorney fees at this stage in litigation is premature. (See Duffy Decl. ¶ 4, Ex. 3; ROA No. 866 [4/23/26 minute order].) <i>Motion to Tax Costs on Appeal (ROA No. 823)</i>
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